



EXECUTIVE ORDER NO. 10
Series of 2024

**AN EXECUTIVE ORDER PROVIDING FOR THE GUIDELINES
FOR THE TRANSPORT AND MOVEMENT OF LIVE PIGS, PORK PRODUCTS
AND BY-PRODUCTS INTO THE PROVINCE OF NEGROS ORIENTAL**

WHEREAS, the AFRICAN SWINE FEVER (ASF) is a highly infectious and deadly viral swine disease affecting both domestic and feral swine of all ages;

WHEREAS, Section 16 of R.A. No. 7160 or the Local Government Code provides that every local government unit shall exercise the powers expressly granted, those necessarily implied therefrom, as well as powers necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare;

WHEREAS, Section 465 of the same Code provides that the Provincial Governor has the power to adopt adequate measures to safeguard and conserve the resources of the province in coordination with the mayors of the component cities and municipalities;

WHEREAS, there is a need to create protocols to facilitate the movement of live pigs, its by-products, and pork and pork-related products, whether raw, processed, or cooked, local or imported, including frozen boar semen into the Province of Negros Oriental while mitigating and preventing the spread of the African Swine Fever within the Province;

WHEREAS, Ordinance No. 31, series of 2023, otherwise known as the *Bantay Sakit Ordinance* was enacted by the Sangguniang Panlalawigan on February 13, 2023 regulating the movement of animals, animal products, and by-products to and from the Province of Negros Oriental;

WHEREAS, the Department of Agriculture (DA) issued Administrative Circular (AC) No. 12, Series of 2019, as amended by DA-AC No. 02, Series of 2022, as amended, providing for a national zoning and movement plan for the prevention and control of the ASF, and DA-AO No. 5, Series of 2019 providing for the guidelines on the local transport of animals, animal products, and by-products;

WHEREAS, there is a compelling need to amend and refine the existing guidelines on the movement, transport and entry of live pigs, its by-products, pork and pork-related products into the Province of Negros Oriental in accordance with the Bantay Sakit Ordinance and the aforementioned government issuances;

NOW THEREFORE, I, MANUEL L. SAGARBARRIA, Governor of the Province of Negros Oriental, by virtue of the powers vested in me by law, do hereby establish and promulgate the following protocols and guidelines for the transport and movement of live pigs, pork and pork-related products, and its by-products into the Province of Negros Oriental:

SECTION 1. DEFINITION OF ZONES.

This Executive Order shall follow the movement flow of different swine related commodities in each colored zone provided in Administrative Circular No. 12, series of 2019, as amended by A.C. No. 02, Series of 2022 issued by the Department of Agriculture, attached to this E.O. as Annex "A" and "B", respectively.

- **RED (Infected) Zone** will include municipalities or cities with confirmed outbreaks of ASF confirmed cases. A confirmed outbreak is defined as having ASF detected in domestic/wild pigs in affected farms in one barangay and spreading to other barangays of the same municipality occurring within 15 days.
- **PINK (Buffer) Zone** will include municipalities or cities where ASF is not detected but demarcated immediately around the RED Zone when an area has been confirmed as an infected zone.
- **YELLOW (Surveillance) Zone** will include municipalities or cities where ASF is not detected and adjacent with the PINK (Buffer) Zone. These areas are considered to be high risk areas, following the risk criteria provided in the aforementioned Administrative Circular.
- **LIGHT GREEN (Protected) Zone** will include municipalities or cities where ASF is not detected and are considered to be moderate risk areas following the risk criteria provided in the aforementioned Administrative Circular.
- **DARK GREEN (Free) Zone** will include municipalities and cities where ASF is not detected and are considered of low risk following the risk criteria provided in the aforementioned Administrative Circular.

SECTION 2. REQUIREMENTS FOR THE MOVEMENT OF LIVE PIGS, ITS BY-PRODUCTS, PORK, AND PORK-RELATED PRODUCTS INTO THE PROVINCE OF NEGROS ORIENTAL

This Executive Order shall also follow the documentary requirements for the transfer and movement provided in Administrative Circular No. 12, Series of 2019 (Annex "A"), as amended by A.C. No. 02, Series of 2022 (Annex "B") and Memorandum Circular No. 45, Series of 2023 (Annex "C") issued by the Department of Agriculture.

A. LIVE PIGS FOR SLAUGHTER

The following documentary requirements must be complied:

1. Local Shipping Permit issued by BAI
2. Animal welfare registration certificate
3. Veterinary Health Certificate issued by a licensed veterinarian (LGU/Private Practitioner)
4. BAI Registered Livestock Transport Vehicle
5. Livestock Handler's License
6. Certificate of Free Status for ASF (CFS-ASF) for commercial farms
7. For backyard farms, certified true copy of the Recognition of Active Surveillance for ASF (RAS-ASF) from the City/Municipal Veterinary/Agriculture Office

8. Negative ASF test result (RT-PCR/cPCR/Antibody ELISA) issued from ADDRL, RADDL or any BAI-Accredited ASF Laboratory seven days prior to shipment
9. Route Plan

B. LIVE PIGS FOR BREEDING

The following documentary requirements must be complied:

1. Local Shipping Permit issued by BAI
2. Animal welfare registration certificate/BAI Accredited Swine Breeder Farm Certificate
3. Veterinary Health Certificate issued by a licensed veterinarian (LGU/Private Practitioner)
4. BAI Registered Livestock Transport Vehicle
5. Livestock Handler's License
6. Certificate of Free Status for ASF (CFS-ASF) for commercial farms
7. For backyard farms, certified true copy of the Recognition of Active Surveillance for ASF (RAS-ASF) from the City/Municipal Veterinary/ Agriculture Office
8. Negative ASF test result (RT-PCR/cPCR/Antibody ELISA) issued from ADDRL, RADDL or any BAI-Accredited ASF Laboratory seven days prior to shipment
9. Route Plan
10. Certificate of Acceptance issued by the City Veterinarian or City/Municipal Agriculturist

C. GENETIC MATERIALS – such as but not limited to semen, embryo, ova, etc.

The following documentary requirements must be complied:

1. Local Shipping Permit issued by BAI
2. Animal welfare registration certificate/BAI Accredited Swine Breeder Farm of the source farm of semen, embryo, ova
3. Veterinary Health Certificate (source animals shall be identified by their ear tag number/tattoo, breed, sex, age)
4. Certificate of Laboratory Compliance (negative tests for PRRS, Pseudorabies and Brucellosis of donor animals)
5. Certificate of Free Status for ASF (CFS-ASF)
6. Negative ASF test result (RT-PCR/cPCR/Antibody ELISA) of source animals issued from ADDRL, RADDL or any BAI-Accredited ASF Laboratory
 - a. Movement of these genetic materials to other RED, PINK, YELLOW, LIGHT GREEN, DARK GREEN Zones may be allowed provided the source animals of the genetic materials were also tested negative for ASF through PCR-based diagnostic tests and antibody ELISA.

D. FROZEN PORK PRODUCTS

The following documentary requirements must be complied:

1. Local Shipping Permit issued by BAI
2. Meat Inspection Certificate (MIC) for locally sourced meat issued by NMIS
3. Certificate of Meat Inspection (COMI) for imported meat issued by NMIS
4. Certificate of Acceptance from the Provincial Veterinary Office



E. UNCOOKED PROCESSED PORK PRODUCTS (FROM ASF-FREE AREAS)

The following documentary requirements must be complied:

1. BAI Local Shipping Permit
2. License to Operate (LTO) and Certificate of Product Registration (CPR) issued by Food and Drug Administration (FDA) for each processed meat product

F. COOKED AND CANNED PROCESSED MEAT PRODUCTS

The following documentary requirements must be complied:

1. BAI Local Shipping Permit
2. License to Operate (LTO) and Certificate of Product Registration (CPR) issued by Food and Drug Administration (FDA) for each processed meat product

SECTION 3. QUARANTINE REGULATIONS ON LIVESTOCK TRANSPORT CARRIERS ENTERING INTO THE PROVINCE

The entry of transport vehicles to the province shall be allowed provided the following are complied with:

- 3.1 Documents to be presented by the owner/operator/driver to the ASF Task Force-Quarantine Officers at the port of entry along with other pertinent documents stated in Section 2 of this Executive Order:
 - 3.1.1 7-Day Downtime Compliance Certificate issued by the PVO/City/Municipal Veterinary/Agriculture Office from the point of origin.
 - 3.1.2 Livestock transport carriers must be properly washed and disinfected. Hence, a Disinfection Clearance must be secured before their departure from the port of origin.
- 3.2 The empty transport vehicle shall observe a mandatory seven (7) days downtime in the designated quarantine area in Guihulngan City or in other areas identified by the respective LGU ASF Task Force.
- 3.3 The LGU shall strictly monitor the disinfection and cleaning of transport vehicles during the downtime period.
- 3.4 The operator or owner of the transport vehicle shall secure a 7-day Downtime Period Clearance from the City or Municipal Veterinary/Agriculture Office where the port is located.
- 3.5 A Certificate of Compliance from the Provincial Veterinary Office shall be secured after the aforesaid 7-Day downtime clearance.
- 3.6 A Disinfection Clearance/Certificate shall be secured before the departure.

SECTION 4. RESPONSIBILITIES OF THE LOCAL GOVERNMENT UNITS (LGUs)

The LGUs that form part of the Province of Negros Oriental shall provide for the following:



- 4.1 Reactivation of the City/Municipal ASF Task Force for orderly implementation of this Executive Order.
- 4.2 LGUs with ports and sub-ports are to augment manpower from their Agriculture/Veterinary Office, Barangay Officials/Tanods, Barangay Livestock Aides (BLAides) duly deputized and under the supervision of the Bureau of Animal Industry and assisted by the Philippine National Police/Philippine Coastguard to be stationed in the said ports within their jurisdiction.
- 4.3 LGUs located along the boundaries of Negros Oriental, i.e. Basay, Mabinay, Vallehermoso, and Canlaon City, shall install animal quarantine checkpoints to be manned by their respective Agriculture/Veterinary Offices, augmented by Barangay Officials/Tanods, Barangay Livestock Aides (BLAides) and assisted by the Philippine National Police/Philippine Army.
- 4.4 Other stipulated duties as provided in Ordinance No. 31, series of 2023, otherwise known as the *Bantay Sakit Ordinance*.

SECTION 6. PENALTIES/SANCTIONS. Penalties for violation of this Executive Order shall be in accordance with Section 13 of Provincial Ordinance No. 31, Series of 2023, otherwise known as the *Bantay Sakit Ordinance*.

SECTION 7. REPEALING CLAUSE. All Executive Orders or issuances inconsistent with the provisions of this Executive Order are hereby repealed, superseded, or modified accordingly.

SECTION 8. EFFECTIVITY CLAUSE. This Executive Order shall take effect immediately and shall remain effective unless otherwise revoked or modified.

Issued this 21st day of February 2024 in Dumaguete City, Negros Oriental, Philippines.

MANUEL L. SAGARBARRIA

Governor 

